

תוכחה, amongst the many things that it entails, has the second תוכחה. Rav Yosef Dov Soloveitchik זצ"ל, from whom I had the זכות to hear this שיעור, discussed תוכחה כי תבוא by mentioning and discussing at great length a הלכה in the Rambam. Rav Yoshe Ber was famous for giving Rambam's שיעורים on גמרא and חומש and everything else.

The הלכה in the Rambam is, and it's brought down להלכה you can look it up, is one allowed to make a הוספה in the תוכחה? He paskins להלכה that you can make a הוספה in the תוכחה כי תבוא but you cannot make a הוספה in the תוכחה of בחוקותי. The question of course is, why? It would seem to us that one would not want to make a הוספה in the middle of a תוכחה because it's hard enough to get one person to stand up to get the עליה for the תוכחה, usually the בעל קורא gets it. But aside from that practical difficulty, what is the difference להלכה between the תוכחה in בחוקותי and the תוכחה כי תבוא?

We know that ספר דברים is called משנה תורה, these are the words of משה רבינו. This was a tremendous יסוד that Rav Yoshe Ber brought out at this שיעור. He said when משה רבינו was teaching over and saying the entire ספר דברים from beginning to the end, משה רבינו himself became a שטיק תורה, he became part of the Torah. This משנה תורה is משה רבינו becoming part of the Torah. However, the first four ספרים of the Torah were related to us by Hashem, Moshe wrote it down, but they are the words of Hashem. ספר דברים are the words of משה.

He brings down an interesting chap on the Rambam. When Hashem is talking, you don't say "Excuse me I want to make a הוספה, excuse me I have to go do something." You don't interrupt Hashem. משה רבינו was משה a human being, so we can make an interruption. That is one very small קנייט as to the difference between the תוכחה in בחוקותי and the תוכחה כי תבוא. You can tell the difference; in fact he brought this down in the שיעור, all of the verbs in בחוקותי are in first person, "I will do this and I will do that." That's הקדוש ברוך הוא talking. In תבוא, משה רבינו is saying "Hashem will do this and Hashem will do that", it's third person. So you can see right from the format, from the style of the syntax of the פרשה that this is correct, what he is saying is true.

Another small מינה נפקא is that the נחמה after בחוקותי is immediately in the פרשה. The נחמה after תבוא כי תבוא is in next week's וילך's פרשה; it comes way, way later. From this there's an intimation that the בחוקותי תוכחה referred to חורבן בית ראשון and the תוכחה כי תבוא is for חורבן בית שני. We know that the גלות after בית ראשון was just a number of years, 70 years. They came back within one generation or two. However, we are still in the גלות after בית שני for thousands of years. The נחמה is very much delayed. We see this בפועל that this is how it came out.

In the תוכחה in our parsha there's a slight pause and משה רבינו tells us, תחת אשר ... כל הקללות האלה לא עבדת את ה' אלקיך בשמחה (דברים כ"ח:מ"ה - מ"ז). Our failure to serve Hashem with שמחה brings the קללות upon us. How do we serve Hashem with שמחה? And what happens if we can't serve Hashem with שמחה? People have ייסורים and they can't be בשמחה. The answer is serving Hashem is שמחה. Not a שמחה that we experience when we perform מצוות, it is the feeling of הכרת הטוב, of gratitude, that no matter what situation we are in, we can always find a way to do the רצון ה'. No matter what we're in, no matter what happens to us, good or bad, we can serve Hashem. The following is a great story that illustrates that in any circumstance we could find a way to serve Hashem.

It happened in one of the many cruel regimes that imprisoned Jews for practicing their religion. I heard it was about ר' אלימלך and ר' זושא, but I'm reading it from A Short Vort, and he does not bring their names. The Poritz once threw the two brothers into prison. They were thrown into a room which was small and dark, and had only one other thing in there: a basket of waste, still full from the previous tenants. That was their company. At the sight of this prison cell, ר' זושא started to cry. "I'm not crying because we're in jail. I know that Hashem sent us here with השגחה פרטית and said we belong here, whatever the reason.



That is for the best. I am crying because I didn't daven מנחה yet. With this smelly bucket of waste here, I cannot daven. I can't serve Hashem if I can't daven." ר' אלימלך smiled and said to him, "Just as you serve Hashem by doing His will and daven מנחה every day, so too, you are now doing רצון השם by not davening, because that's the הלכה. You are serving Hashem in exactly the same way now that you cannot daven as you do when you do daven." After hearing this, ר' זושא jumped up with tears of joy. He grabbed ר' אלימלך, and together they sang and danced around the bucket of waste, ecstatic at the thought of serving Hashem according to רצון השם. Hearing all this commotion, the prison guards came running in, saw this bizarre scene of these two prominent רבנים dancing around a bucket of waste.

Not wanting them to have any kind of pleasure at all, they stormed the prison cell and removed the bucket, delighted at having deprived the רבנים of their source of joy. As soon as the guards left, ר' זושא turned towards the east and started to daven מנחה, again delighted to serve Hashem in that best possible way. That is such a delightful story. I'm glad I could share it with you.

